

IMAGINATION

STORIES OF SCIENCE AND FANTASY

SEPTEMBER, 1954

35¢

VENGEANCE
FROM THE PAST

by GEOFF ST. REYNARD



IMAGINATION

STORIES OF SCIENCE AND FANTASY

SEPTEMBER, 1954

35¢

VENGEANCE
FROM THE PAST

by GEOFF ST. REYNARD



The Project Gutenberg eBook of Three Spacemen Left to Die!

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Three Spacemen Left to Die!

Author: R. R. Winterbotham

Illustrator: W. E. Terry

Release date: September 29, 2021 [eBook #66416]

Most recently updated: October 18, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/66416

Credits: Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THREE
SPACEMEN LEFT TO DIE! ***

**Disease contaminated their ship; any
moment one of them might become infected and
spray lethal sparks to the others. There was
no cure—except prevention. And that meant—**

Three Spacemen Left To Die!

By Russ Winterbotham

**[Transcriber's Note: This etext was produced from
Imagination Stories of Science and Fantasy**

September 1954

**Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**

Commander Al Andrews had closed and locked the energy-proof, neutralizing bulkheads against the creeping red glow that infected one quadrant of his circular space ship. Now he stood in the Control Center, in the mid-section of the revolving wagon-wheel ship, looking at Oakey Matthews.

There had been times aboard this ship when a whole crew had been comfortable in months-long trips through space. But now there were only three men, three men fleeing from death and it was no longer comfortable here, because death was breathing down the neck of at least one of them.

Oakey was intent on the instruments in front of him. Oakey was young, with a face that glowed with velvet skin. Even in space Oakey shaved every day, shined his shoes and pressed his uniform. Al was sloppy, bearded and ungroomed. But Al had lived most of his 50 years in space.

Oakey looked up toward Al. His young eyes searched the hard leathery face of his commander. He saw the grim set to Al's jaw and the hard lines around the older man's eyes. Al was cold. Nerveless as a piece of rope.

"How's Joe?" Oakey asked.

Al shook his head. "Last stages," he said. The commander went to a tier of built-in drawers across the room from the control panel. His arm reached out, pulled on the third drawer from the bottom. From this drawer he took an old-fashioned revolver and a box of shells. Not ordinary shells. The bullets were plastic, strong enough to pierce flesh, too soft to rupture the walls of the space ship.

"Don't do it, Al," Oakey said, watching the commander.

Al shook his head. He slipped bullets into the cylinder.

"We're the last earthmen, let's not die killing each other," pleaded the young man. "This thing will catch us all before long. Let's stop fighting it. Joe's our pal. Let him live."

"We're the last earthmen and we're going down fighting," said Al.

"We've fought. For ten years we've fought. Now we're in space, Al. So far from the sun we can't tell it from any other star. There's no earth women

here. Even if we live a few years longer, the strain of earth-blood dies with us. We're licked, Al. Let's surrender gracefully."

"We're earthmen," said Al. "We fight."

"The last earthmen. There's nothing left to fight for—"

"Except life," said Al. "Now listen, Oakey. I'm still commander. I know what I'm doing and you take orders from me—or it's mutiny. Yeah, I know the Quinnies have covered the earth. From the Arctic to the tropics men died shooting sparks like fireworks. But the earth isn't the only planet in the Galaxy where men exist. You didn't take that first trip this ship made, did you, boy?"

Oakey laughed. "That was ten years ago. I was a kid in high school then."

Al flipped the cylinder closed and made sure the gun was ready to use. "We went to another system," he said. "A fluke, maybe. Or maybe the Old Man planned it. He believed in interstellar travel by dimensional short cuts. I was third mate, like you. I fingered the controls and he gave me the figures. Something like a double right-angle repeated twice. I was dizzy as hell when I finally put old Wagon Wheel on a straight course, but after I blinked my eyes a couple of times and looked out through a porthole, I knew that the Old Man was right. There was the cutest little green planet, and the nicest, warmest fourth-magnitude sun you ever saw." He smiled and the hard lines disappeared for a moment. "Where are we now?"

"Sixty-three, seven, ninety-one. At 1300. I can work it down to twelve decimals, sir, if you want—"

"Never mind. Just watch the instruments. The chronometer lines will tell you when."

Al stuffed the revolver under his belt in the front of his trousers. "We're going back to that planet, Oakey. A pretty little place, soft and warm as a tropical isle. And there were nice looking people there—human beings like us." Al closed his eyes. "Such women. Nice round shoulders. Soft brown eyes you could spend a lifetime looking into. There was one...."

Al paused while his fingers seemed to caress the butt of the pistol. "She called herself something like Dwea.... I taught her to speak English a little." The commander shrugged his shoulders. "Maybe you'll find a girl there, Oakey. Maybe I'll see mine again. That was ten years ago." He chuckled. "She's probably got a husband and six kids now."

Al took a step toward the doorway marked C, one of four, each leading to a quadrant of the wagon wheel.

"Please, sir," said Oakey. "Don't—"

Al pulled open the door. "Time's getting short and we can't take the Quinnies to that planet with us." A sweep of centrifugal force caught him as he opened the door. His big, hairy hand caught the rung of a ladder beside the door. "Joe went on that trip. He and I were the only ones of the crew that didn't catch the Quinnies the minute we landed back on earth. We ducked out again, shipping with a new commander with a new crew on old Wagon Wheel again. We went to Ganymede."

"Yeah," said Oakey. "I was cabin boy on that trip. My first space flight. Maybe that's how I escaped the Quinnies too." Oakey glanced at the chronometer. "We've still got fifty-five minutes. Why don't you wait twenty minutes or so?"

Al heaved a sigh and swung onto the ladder, letting himself down, which was outward, toward the rim of the wheel. "I might have trouble," he said.

Al put his hands against the bulkhead door. It was cool enough. The Death Glow wasn't seeping into the ship. The Glow itself wasn't the contagious part. It was the sparks that shot from men's bodies. The early stages of the disease were the dangerous ones, for then the sparks were often too small to be seen. In the later stages a man suffering from Quinnies gave off his own warning and could be avoided.

Al took a small intercom phone from a box beside the doorway. He spoke into it. "Joe."

A voice came back. "Yeah. That you, commander?"

"Yes, Joe. How do you feel?"

"Like hell, I guess. Funny though, there's no pain. Just annoying. Like the hiccups. And I'm getting weaker."

"You're in the last stages."

"Maybe. Maybe not. I've heard of guys that lived fourteen months shooting sparks worse than I'm doing right now."

"I'm coming in, Joe."

"Give me a break, Al. I won't come near you or Oakey. I'll stay here. There's food, water ... everything I need. Just let me live till it starts to hurt. Maybe I'll ask you to come in then."

"There isn't time, Joe. Besides, it'll be easier this way. You're dying. You're shooting sparks from your hair roots. Something might happen and Oakey and I would come down with the Quinnies. We are the only earthmen left now, Joe."

"Don't be too sure." Joe's voice was harsh, like the hissing of sparks. "You might have the Quinnies and not know it."

"You're not in pain?"

"Hell no. I told you I wasn't. But I'm lit up like the Fourth of July, Guy Fawkes Day, Bastille Day and the Chinese New Year."

"Your brain's a dynamo of energy, Joe. It's shooting Quinnies in all directions through every nerve fibre of your body."

"Are you trying to make it easier, or something?"

"I'm trying to make you understand. I've got to kill you. I'm not doing it because I want to. You're my best friend, Joe. We've had a lot of swell times together. But I've got to kill you—Oakey and I have to land on the Green Planet and we're not taking the Quinnies there with us."

"You're doing me a favor, huh? Some favor. Better make sure you haven't got the Quinnies yourself before you try to make like God."

"I'd know if I had 'em," said Al. "I'm coming in, Joe."

"I'll kill you first," said Joe. "As a favor to myself."

Al shot back the bolt. "Don't try it, Joe."

The commander pulled on the door. It swung open a couple of feet. A bolt of red fire swept through the opening. But Al had expected this and he was safe behind the neutralizing door. Then Al stepped into the opening. He didn't need light, for Joe was a red glow against the quadrant wall.



Joe stood with his feet wide apart, with an aura of fire around his body. Flaming sparks seemed to lick the air to form an outline of a human being.

Joe raised his finger toward the commander and Al didn't wait. He squeezed the pistol's trigger and then stepped back behind the door as flame lashed toward him again. The report of the gun echoed.

"You murderers!" Joe groaned. His body hit the floor with a thud.

Al waited, then opened the door again. Joe lay on the floor. No sparks came from his body now. He looked like a sleeping man.

Outside, the cherry red glow of the quadrant ebbed till the sides were black as space.

Al put the gun back in the drawer in the control room. He closed it and then sank into a chair beside Oakey. The young man said nothing, but kept his eyes glued on the control panel.

Finally Al spoke. "Ever take the test, Oakey?"

"No."

"Neither did I. Scared I might have it, I guess. But I kept telling myself that I might catch the Quinnies from the instruments they used to test you. Anyhow, I know the symptoms. I'd show symptoms if I had the Quinnies, wouldn't I?"

"Dunno. Joe knew the symptoms. He must have had it for a long time before he began shooting sparks." Oakey paused for a moment. "We've probably been exposed, Al."

"Yeah, we've been exposed a thousand times," the commander said. "Everybody on this ship except Joe and I died from the Quinnies after we returned from that voyage ten years ago. Everybody else I sailed space with died too—except you. There's some kind of immunity. Maybe we've got it. You and I."

"The Quinnies isn't like measles or small pox, Al. Germs and viruses don't cause it. Something goes wrong with life itself."

"Maybe we should know something about life," Al grinned. "But after centuries of finding out about everything else, we don't know what life is."

All biologists can tell us is that we're molecules strung together to make cells that produce some sort of energy."

"If we knew the cause of life...."

"We don't know the cause of anything ... we get to one cause and wonder what caused it. We never know the first cause, and if we found it we'd ask what caused it. Everything goes around in circles. There's the carbon-nitrogen-hydrogen cycle that makes the sun hot—elements change and get back to where they started, losing just a little energy. That energy goes out into space, loses velocity and becomes matter, matter forms suns. Maybe life is part of the merry-go-round. Maybe energy makes matter, life results from matter; life produces a little energy."

"We're generators, huh?"

"Not exactly. Did you ever study a dynamo, Oakey? It doesn't make energy, it converts one form into another form, the stuff we call electricity. But it seems to do it intelligently. Supposing your generator makes a kilowatt of power and you're lighting a string of light bulbs with it. There's ten bulbs, each using 100 watts of power, but some economical so-and-so comes along and turns out five of them. You'd expect the generator to get all fouled up, or maybe burn out some wires, but it goes along at the same speed and makes just 500 watts of power, no more, no less. Dynamos are like that, they never waste their output."

"Is that life?"

"In a way it is," said Al. "Like I said, we're not generators, but life may be just a process of making a little energy. We make just enough to keep the merry-go-round going. Then something goes wrong. We start making more than we should. We get overcharged, like a battery. The energy has to go somewhere, so we start shooting sparks."

Oakey laughed. "Your theories by-pass some of nature's laws and they would make a logician take to a sick bed, but they sound good." He turned his eyes on the chronometer a moment. "What fouls up the safety valve, as long as we're mixing metaphors?"

"Maybe we've got more than life," said Al. "We've got emotions, consciousness and a lot of things that life in general doesn't have. But you and I can control our emotions. We're cold-blooded. I just shot a friend, your friend too and you let me do it. Our cold-blooded common sense told us it was the thing to do. We have to stomp out the Quinnies before we land on the Green Planet. If you get the disease, I'll kill you, just like I killed Joe. If I get it, you'll kill me—"

"No, commander. I won't."

"Then I'll kill myself and save you the trouble. But maybe we won't get it. Maybe we're immune for one reason or another."

"We're not alike either in temperament or physically. I'm young, Al. You're older. You're a hell of a lot colder-blooded than I am. Hell, I've got emotions. I couldn't do what you did. Organically we're different, too. My cells may be the same, but they're conditioned differently. I'm allergic to certain kinds of cheese—"

"So are lots of people. I could establish an allergy to the same things you can't take. That shows our chemistry *is* the same."

Oakey glanced at the instruments again. "Better take over, sir. There's only four minutes left."

Al strapped himself into his seat. Oakey already had adjusted his harness and now the two men adjusted their bodies to fit the contours of the chairs that would lessen the punishment of sudden acceleration.

The commander gripped the lever that would kick atomic fuel into the rocket chambers.

"One minute," said Oakey.

Al injected the fuel and then placed his finger over the firing button.

"Thirty seconds ... twenty ... ten ... five, four, three, two—"

Both men tensed.

"—one ... ZERO!"

Their bodies strained as the ship lurched. Oakey counted the seconds with his hand, for he could not talk now. Al squeezed the control button again.

This was repeated again. And again. Then Al cut the rockets. The pressure on their bodies eased. Both men relaxed.

Al unstrapped himself and swung his legs to the floor. He walked toward the porthole. He had to walk carefully, for the centrifugal pitch made the feat like balancing on a turn-table.

He reached up and adjusted the flaps. Into the room streamed warm sunlight. A glowing orb swung into view as the ship turned on its axis. A moment later they saw another disc, a bright green disc, a planet hanging in space.

"We're there!" whispered Oakey.

Al said nothing. His eyes were not on the planet, but on his hand, raised a fraction of an inch from the flap control on the metal wall of the ship. Writhing like a snake from his fingertips to the wall, was a tiny red spark!

Oakey turned his eyes from the porthole to the silent commander. He saw the ribbon of flame. His body grew tense. Slowly his hands fingered the buckles on the straps of his G-harness. He unfastened them and sprang to his feet. Al didn't try to stop him as Oakey swung across the turn-table room toward the tier of drawers.

"Make it quick, Oakey," said Al.

Oakey opened the drawer, took out the gun and thrust it into his pocket.

"Shoot me, Oakey. You've got to. We can't take the Quinnies to that planet!"

"I won't."

"It's mutiny. Give me the gun; I'll kill myself."

"There's no such thing as mutiny any more, Al. We're just two men in space. The last earthmen alive. The problem will solve itself."

"Oakey, we're not going to land on the planet alive."

"Be yourself. We've made a good fight. We lost. Let's die with a solid piece of ground under our legs. What if we do infect a planet with a plague.

There's a thousand planets just like it in the universe. Every man on them will die, if not today, then in a few years from now. What difference does it make? Why should we try to keep the merry-go-round going?"

"Because ... there's a reason. We don't know what it is, but we've got to live and we've got to die. But we've got to preserve life every second we can."

"Is that why you want me to kill you? To preserve life?"

"One life doesn't matter." Al pointed to the porthole. "It's a whole world of living human beings ... people like us."

"We don't owe them anything."

Al pushed himself away from the wall, toward Oakey across the room by the tier of drawers. But the reflexes of youth were on Oakey's side. The young man's punch caught Al flush on the jaw and the bearded commander went down.

When Al opened his eyes, Oakey was decelerating the circular ship into a spiral that would set it down on the planet.

Al raised himself on his arms and pulled himself toward the control panel. "You can't do this, Oakey. You're killing a world."

"What's that world to us?"

Al looked at the metal floor plates under his body. The cherry glow was flooding from his body into the plates. Al was gone farther than he thought. For months he must have been harboring the disease, just as Joe had been ill a long time before realizing it. Al's natural resistance, perhaps strengthened by long years of exposure to the radiations of space, must have held back the final stages until the tide had burst through in an overwhelming flood. Even when Al killed Joe, Al was near the last stages himself.

Al remembered Joe's last bid for survival. Joe was much like Oakey. Joe had hated to die, he wanted to live to have soil under his feet again. But the disease had to be wiped out. And Joe had fought with his last weapon, the energy ebbing from his body.

The energy....

Grim lines appeared deep around Al's eyes. He raised his hand from the floor. His brain throbbed. Yes, his brain was a battery of energy now, the energy of life. And the purpose of life was to preserve life, a single second, or a thousand million years. Not one life, but the race. That was the aim of life.

"Oakey." Al's voice hissed.

Oakey turned from the instrument panel. His eyes focussed on the cherry red floor with Al in the center of the glow.

Sparks came from Al's mouth as he spoke again. "Before I shot Joe, I tried to make him understand. I had to kill him, and I've got to kill you whether you've got the disease or not. It's the way with things. Our individual lives don't mean a plugged nickel, but a whole race does. We can't take the Quinnies to the green planet."

"I told you, they're not people like us," said Oakey. "They just look like us. Some fish look like snakes. Some mammals look like fish. But they're not fish."

"But they are like us. I know," said Al. "An atom of iron on Sirius is the same as an atom of iron on the sun. Why can't two human cells be the same, even if they're light-years apart?"

"You're just guessing."

"I told you, I know."

"You think you know. You met a girl once. Maybe she had a nice figure and pretty eyes. Your glands got fooled."

"She was just like an earth-girl, only prettier. That's why—"

"Maybe she was pretty, but that was ten years ago. You're not handsome any more and neither is she. She's probably got six kids, you said so yourself."

"Yes, Oakey, maybe six, maybe only one kid. One that has earth blood in him. My kid, Oakey. There's still one more earthman alive in the universe. That's why I'm doing this to you."

Al let the energy flow out through his fingertips. A cherry red bolt struck Oakey right in the face.

On the green planet, a matron and her son were looking up into the stars. The boy cried out in delight: "A shooting star, mommy," he said. "Make a wish."

Trailing red sparks, the meteor seemed to veer off suddenly and speed away again into space.

"I wished that your father would return from the skies," said the woman. "For a moment, I thought maybe he had."

*** END OF THE PROJECT GUTENBERG EBOOK THREE
SPACEMEN LEFT TO DIE! ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.